

# INDEPENDENT BUSINESS INTRODUCER FRAMEWORK AGREEMENT — UPWORK EDITION

*Commission-based commercial partnership • Agreement governed by Belgian law • Framework Agreement version 1.0-UPW (Upwork Edition)*

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## Between the undersigned

### FLOWPOINT

Full legal name: Heusschen, Maël

Trade name: FlowPoint

Legal form: Sole proprietorship (self-employed natural person)

Enterprise number (CBE): 1038.273.845

VAT number: BE1038.273.845

Registered office address: Cité de Husquet 10, 4820 Dison, Belgium

Website: <https://flowpoint.pro>

Represented by: Maël Heusschen, Founder / Sole Trader

Hereinafter referred to as “FLOWPOINT”,

And:

### The Introducer

Name or corporate name: [FULL NAME]

Legal form or status: [SELF-EMPLOYED/COMPANY]

Enterprise number: [NUMBER]

VAT number: [VAT NUMBER]

Address: [FULL ADDRESS]

Country: [COUNTRY]

Represented by: [NAME AND POSITION]

Hereinafter referred to as “the Introducer”, FLOWPOINT and the Introducer being together referred to as the “Parties”.

## Article 1 — Purpose

FLOWPOINT entrusts to the Introducer, who accepts, a non-exclusive assignment consisting in identifying prospects likely to be interested in FLOWPOINT’s services and in putting them in contact with FLOWPOINT.

The Introducer acts as an independent professional. The Introducer has no power to legally represent FLOWPOINT, to enter into any contract in its name, or to bind FLOWPOINT towards any third party.

This framework agreement (the “Agreement”) consists of these general provisions, of Annex 1 (Practical information) and of Annex 2 (Commercial Terms and Commissions), the latter in the applicable version determined in accordance with Article 7.

## Article 2 — Permitted activities

The Introducer may:

- identify prospects matching the criteria communicated by FLOWPOINT;
- present FLOWPOINT’s features and benefits using only the approved commercial information;

- pass on a personal tracking link or a partner code;
- arrange an introduction or a demonstration;
- support the prospect in its decision-making without binding FLOWPOINT.

Without FLOWPOINT's prior written authorisation, the Introducer may not:

- sign any document in FLOWPOINT's name;
- modify prices, discounts or contractual terms;
- promise any feature, deadline or result that has not been approved;
- collect payments directly from customers;
- create materials using the FLOWPOINT brand;
- engage a sub-introducer;
- present the relationship as an employment contract;
- enter into any legally binding commitment in FLOWPOINT's name.

The final acceptance of the customer and the conclusion of any subscription fall within FLOWPOINT's exclusive competence.

### **Article 3 — Independence of the Parties**

The Introducer freely organises its activity, working time, methods and place of work. The Introducer is not subject to any fixed working hours, minimum quota or hierarchical control.

The Introducer uses its own equipment, bears its own business expenses and remains free to work for other clients, subject to the confidentiality obligations provided for in this Agreement.

This Agreement constitutes neither an employment contract, nor a partnership, nor a franchise, nor an exclusive relationship. The Introducer remains solely responsible for its tax, social security, administrative and accounting obligations in its country of establishment. The Parties undertake to perform their relationship in accordance with this independent status.

### **Article 4 — Registration and identification of prospects**

In order to create a potential entitlement to a Commission, the prospect is automatically attributed to the Introducer when it accesses FLOWPOINT or registers with FLOWPOINT through the Introducer's personal and unique referral link containing the Introducer's seller identifier (seller\_id), and that seller\_id is recorded in FLOWPOINT's systems. If this automatic tracking is unavailable, incomplete or disputed, the attribution may be carried out manually by means of 1 or more of the following methods of proof:

- individual partner link;
- partner code;
- prior registration in the tool designated by FLOWPOINT;
- transmission to FLOWPOINT of an Excel, CSV or equivalent file;
- transmission of a structured list kept in a note-taking or sales-tracking tool;
- email sent to FLOWPOINT clearly identifying the prospect;
- screenshot of a conversation with the prospect;
- evidence of an exchange by email, professional messaging service or social network;
- written confirmation from FLOWPOINT acknowledging the introduction;
- any other means of proof accepted in advance in writing by FLOWPOINT.

The list, document or evidence transmitted must contain sufficient information to enable FLOWPOINT to identify the prospect and to search for it in its systems, in particular Stripe, its CRM or its user database.

To the extent that they are available and have been lawfully collected, the minimum information to be provided includes:

- the name of the company or of the prospect;
- the name of the contact person;
- the professional email address or the one used to create the FLOWPOINT account;

- the company's website or domain name;
- the country;
- the date of first contact;
- the channel used to contact the prospect;
- any additional information reasonably necessary to avoid confusion with another prospect.

Where it is known, the email address used by the prospect to register or to make a payment constitutes the primary identifier.

Where a screenshot is used as evidence, it must make it possible to identify the prospect, the date, the account or means of communication used, as well as the actual nature of the introduction or of the presentation of FLOWPOINT. The Introducer transmits only the information necessary for the identification and attribution of the prospect and masks, where possible, private information or the parts of the conversation unrelated to that attribution.

The registration must take place before the prospect signs up or subscribes or, at the latest, within 24 hours following the first documented introduction.

Upon receipt of the list or of the evidence, FLOWPOINT checks whether the prospect already has an account, benefits or has already benefited from a trial, is or has already been a customer, already appears in the sales pipeline, has already been introduced by another partner, or has already been the subject of documented exchanges with FLOWPOINT.

FLOWPOINT informs the Introducer of the acceptance or refusal of the attribution of the prospect, without being required to disclose confidential, financial or personal information concerning that prospect. FLOWPOINT may refuse a prospect falling within one of the foregoing categories, failing to meet the eligibility criteria, that cannot be identified with sufficient certainty, or that is connected to the Introducer for the purpose of artificially obtaining a Commission.

The absence of an immediate response from FLOWPOINT does not amount to acceptance. In the event of a dispute, FLOWPOINT's time-stamped data, Stripe information, CRM records, tracking links, partner codes, emails, transmitted lists and evidence of conversations are examined in order to determine the origin of the prospect.

## **Article 5 — Attribution period**

A validly registered prospect remains attributed to the Introducer for 90 days from its registration. If the prospect starts a free trial during that period, the attribution remains valid until 30 days after the normal end of that trial. Any extension requires FLOWPOINT's written agreement.

## **Article 6 — Commission**

For each new customer validly attributed to the Introducer, the Introducer is entitled to a Commission, the rate, calculation basis, recurring or non-recurring character, eligible offers and product categories, rules specific to billing methods and exclusions of which are set out in the Commercial Terms and Commissions (Annex 2) applicable in accordance with Article 7.

Under version 1.0 of the Commercial Terms, the Commission is a one-off, non-recurring Commission: it is equal to 35% of the amount excluding taxes of the first eligible subscription payment actually collected by FLOWPOINT, is paid only once per new customer, and does not apply to payments excluded by Annex 2.

## **Article 7 — Commercial Terms: versions and changes**

The Commercial Terms and Commissions are established in the form of numbered versions. Each version states its number, its effective date and the changes made compared with the previous version. Version 1.0 is accepted by the Introducer upon signature of the Agreement.

Where its offering changes, in particular in the event of the creation, modification or removal of an offer, a plan, a billing method, an add-on or a category of products or services, or in the event of a change in its prices, FLOWPOINT may establish a new version of the Commercial Terms. FLOWPOINT notifies it to the Introducer by email, at the address indicated in Article 21, at least 15 days before its effective date, together with the full text of the new version.

A new version that does not reduce the Introducer's rights, in particular the addition of an offer, a billing method or an eligible category of products, the updating of public prices without any change to the rate or to the calculation basis of the Commission, or a mere clarification, applies as from its effective date. An Introducer who does not wish to continue the relationship may terminate the Agreement in accordance with Article 15.

A new version that reduces the Commission rate, restricts its calculation basis or the eligible offers, adds an exclusion, or makes the conditions for earning or paying the Commission less favourable, applies to the Introducer only after its express acceptance. Such acceptance may be given electronically, in particular by electronic signature of the new version or of an amendment, or by a time-stamped online acceptance, without it being necessary to sign a new framework agreement. Failing acceptance, the previously applicable version continues to apply to the Introducer, each Party retaining the right to terminate the Agreement in accordance with Article 15.

No new version may reduce, remove or modify a Commission already earned, nor the terms applicable to a sale that is already eligible. Each Commission is governed by the version of the Commercial Terms applicable to the Introducer on the date of the customer's first eligible payment. However, a prospect validly registered before the effective date of a less favourable version remains subject, during its attribution period, to the version applicable on the date of its registration.

FLOWPOINT keeps, for each Introducer, its seller identifier (seller\_id), the signed Agreement and its version, the versions of the Commercial Terms notified and, where applicable, accepted, together with their dates of notification, acceptance and effect, as well as the history of the applicable versions. Each Commission statement states the version of the Commercial Terms applied. The Introducer may obtain, on simple request, a copy of the versions that are or have been applicable to it. These data are processed in accordance with Article 13.

Any modification of the other provisions of the Agreement remains subject to Article 20 and may be formalised by an amendment signed electronically.

## Article 8 — Conditions for earning the Commission

The Commission is earned only if:

- the prospect has been validly attributed;
- the trial period, if any, has ended;
- the customer has subscribed to an eligible paid offer within the meaning of the applicable Commercial Terms;
- FLOWPOINT has actually collected the payment;
- the payment has not been cancelled, disputed or refunded;
- there is no reasonable indication of fraud or self-referral;
- the Introducer has provided the required invoicing documents, subject to Article 9bis.

A free sign-up or the start of a trial does not generate any Commission.

## Article 9 — Payment

Subject to Article 9bis (Introducers engaged through Upwork), FLOWPOINT validates the sale during the 30 days following receipt of the payment in order to take account of refunds, chargebacks and fraud. After validation, FLOWPOINT provides a Commission statement. Save where a different mandatory regime applies, the Introducer then issues a compliant invoice. The Commission is paid within 15 days following receipt of that invoice.

Bank charges, payment-processing and platform fees applicable to the Introducer, taxes and the Introducer's tax obligations remain at its expense, the fees applied by Upwork being governed by Article 9bis.6. If a Commission paid relates to a payment that is subsequently cancelled, refunded or declared fraudulent, FLOWPOINT may deduct it from future Commissions or request its repayment within 30 days.

## Article 9bis — Introducers engaged through Upwork

**9bis.1 Scope.** This Article applies where the Introducer has been sourced, engaged or contracted through the Upwork platform ("Upwork"), for as long as the relationship between the Parties is subject to Upwork's

applicable terms of service and policies (the “Upwork Rules”). It adapts the method, channel and documentation of payment to that platform and to nothing else.

**9bis.2 Initial onboarding milestone.** Prior to the commencement of any prospecting, the Parties conclude a fixed-price Upwork contract whose first milestone, in the amount of USD 10 and entitled “FlowPoint Sales Onboarding and Product Familiarization”, remunerates a distinct and self-standing deliverable consisting of the review of FLOWPOINT’s product, of its pricing plans, of its target customers and of its sales materials, of the review of the commission structure, and of the completion of the initial sales onboarding. That milestone is earned and payable upon the completion and validation of that deliverable, independently of any subsequent sale. It constitutes neither an advance on, nor a part of, nor a set-off against any Commission, and it does not modify the Commission rate, its calculation basis or any condition for earning it. The Introducer begins prospecting once that onboarding has been completed and validated.

**9bis.3 Attribution and calculation unchanged.** The determination of the prospects attributed to the Introducer, of the new customers giving entitlement to a Commission and of the amount of each Commission continues to be governed exclusively by Articles 4 to 8 and by the applicable Commercial Terms, on the basis of FLOWPOINT’s internal attribution and tracking systems, in particular the seller identifier (seller\_id) referred to in Article 4. Upwork intervenes solely as the channel through which payment is processed and takes no part whatsoever in the determination of entitlement to a Commission.

**9bis.4 Payment processed through Upwork.** Notwithstanding Article 9 and any other payment or invoicing provision of the Agreement, any amount payable to the Introducer in connection with the relationship initiated through Upwork, including each validated Commission, is processed and paid through the payment functionality made available by Upwork for that contract, for as long as the Upwork Rules so require. FLOWPOINT validates the sale during the 30 days following receipt of the payment and provides the Commission statement in accordance with Article 9, and releases the corresponding amount through Upwork within 15 days following that statement. Neither Party shall arrange, solicit or accept payment of such amounts outside Upwork for as long as the Upwork Rules require those payments to remain on the platform.

**9bis.5 Invoicing.** Where payment is processed through Upwork, the invoices, receipts, statements and other documents generated or required by Upwork replace the direct invoicing procedure provided for in Articles 8 and 9, to the fullest extent permitted by the applicable law. The Introducer is not required to issue a separate invoice directly to FLOWPOINT in respect of amounts paid through Upwork, save where a mandatory tax or accounting rule applicable to either Party requires it, in which case such an invoice is issued for documentary purposes only and gives rise to no second payment. Each Party remains responsible for its own tax, VAT and accounting obligations in accordance with Article 3.

**9bis.6 Upwork fees and charges.** The service fees, membership fees, currency-conversion charges, withdrawal fees and other charges applied by Upwork to the Introducer are governed by the Upwork Rules alone. They are borne by the Introducer, form no part of the calculation of the Commission and do not alter the gross amount of the Commission determined by FLOWPOINT in accordance with the applicable Commercial Terms, save where the platform or a mandatory legal or tax rule requires a deduction or a withholding to be applied, in which case FLOWPOINT applies it without any other change to the calculation of the Commission.

**9bis.7 Changes to the Upwork mechanisms.** If Upwork modifies, renames, replaces or withdraws the payment mechanism used, FLOWPOINT may use any other compliant payment mechanism made available by Upwork for that relationship, without any amendment to this Agreement being required and without any change to the rate, to the calculation basis, to the conditions for earning or to the amount of the Commission.

**9bis.8 Release from the platform.** If the relationship between the Parties is subsequently authorised to be conducted outside Upwork in accordance with the Upwork Rules then applicable, in particular upon the expiry of any applicable off-platform restriction or upon the completion of any opt-out procedure provided for by Upwork, the ordinary payment and invoicing provisions of Article 9 apply again as from that date, without any change to the Commission rules.

**9bis.9 Precedence and limits.** In the event of any inconsistency between this Article and any other provision of the Agreement relating to the method, the channel, the documentation or the timing of payment, this Article prevails. This Article modifies neither the Commission rate, nor its calculation basis, nor the attribution rules, nor the conditions for earning the Commission, nor the exclusions set out in the applicable Commercial Terms.

## Article 10 — Prices and commercial communications

The applicable prices, offers, trials and conditions are those officially published or communicated by FLOWPOINT. The Introducer may not grant any discount or modify a trial without written authorisation and shall refrain from any false, misleading, exaggerated or unverifiable statement concerning FLOWPOINT.

## Article 11 — Prospecting and compliance

The Introducer complies with all laws applicable to commercial prospecting, electronic communications, data protection, fair competition, consumer protection, anti-corruption, opt-out lists and unsubscribe requests. Where required, the Introducer keeps evidence of the source of the contact details and of the legal basis for the prospecting.

The following are prohibited in particular:

- untargeted mass spam;
- identity impersonation;
- false testimonials or promotions;
- the purchase of databases from unknown sources;
- harassment of prospects;
- the transmission of unlawfully obtained data.

Any objection or unsubscribe request must be complied with immediately and forwarded to FLOWPOINT where it also concerns FLOWPOINT.

## Article 12 — Confidentiality

The Introducer keeps confidential all non-public technical, commercial, financial and strategic information, prospect lists, access credentials, documents and data obtained in the course of the relationship. This information may be used only to perform this Agreement. This obligation remains in force for 5 years after its end; trade secrets remain protected for as long as they retain that status.

## Article 13 — Personal data

Each Party processes the personal data falling under its responsibility in accordance with the applicable laws. The Introducer transfers only the data that are necessary and lawfully collected. If the Introducer processes data on FLOWPOINT's instructions, the Parties must first conclude a separate data processing agreement. The Introducer informs FLOWPOINT without undue delay of any security incident concerning FLOWPOINT data.

## Article 14 — Intellectual property

FLOWPOINT retains all rights relating to its software, its brand, its content, demonstrations, databases and materials. FLOWPOINT grants the Introducer a personal, revocable and non-transferable right to use the approved materials solely for the purposes of this Agreement. Upon the end of the Agreement, the Introducer ceases to use the FLOWPOINT brand and returns or deletes the confidential documents and access credentials.

## Article 15 — Term and termination

This Agreement enters into force on [DATE] for an indefinite term. Either Party may terminate it subject to 15 days' written notice.

FLOWPOINT may terminate it with immediate effect in the event of fraud, breach of confidentiality, unlawful prospecting, misuse of the FLOWPOINT brand, untruthful statements, damage to FLOWPOINT's reputation, or serious or repeated breach.

Termination does not affect Commissions definitively earned. Prospects validly registered before the termination remain eligible until the end of their attribution period, unless the termination results from fraud or from a breach affecting the earning of those Commissions. No Commission is due on payments other than those giving entitlement to a Commission under the Commercial Terms applicable to those prospects.

## Article 16 — Verification and suspension

FLOWPOINT may request the information reasonably necessary to verify the Introducer's identity and professional status, its bank or Upwork payment account details, the origin of a prospect, the compliance of a campaign, the authenticity of a sale and the absence of fraud. FLOWPOINT may temporarily suspend a Commission that is subject to a serious verification, provided that it explains the reason for doing so. The suspension may not exceed the period reasonably necessary.

## Article 17 — Liability

Each Party is liable for the direct damage resulting from its fault or breach. The Introducer indemnifies FLOWPOINT against claims directly caused by unlawful prospecting, false promises, unauthorised use of data, infringement of third-party rights or an unauthorised commitment made in FLOWPOINT's name. No limitation applies in the event of fraud, wilful misconduct or where the law prohibits it.

## Article 18 — Prohibition of assignment

The Introducer may not assign this Agreement, transfer its assignment hereunder or engage sub-introducers without FLOWPOINT's prior written agreement.

## Article 19 — Governing law and disputes

This Agreement is governed by Belgian law, without prejudice to the mandatory provisions applicable in the Introducer's country. The Parties shall first attempt to reach an amicable solution during the 30 days following a written notification. Failing agreement, the courts of the judicial district of FLOWPOINT's registered office shall have jurisdiction, save where a mandatory rule provides otherwise.

## Article 20 — General provisions

This Agreement and its annexes constitute the entire agreement. Subject to Article 7 for the Commercial Terms, any modification must be in writing and accepted by the 2 Parties, where applicable electronically. In the event of a contradiction, the applicable Commercial Terms prevail for the Commission rules and these provisions prevail for any other matter. If a provision is invalid, the others remain applicable and the Parties shall replace it with a valid provision pursuing a comparable economic objective. Notices are sent to the email addresses indicated below, save where a particular form is imposed by law.

## Article 21 — Electronic signature

The Parties agree to sign electronically and acknowledge the evidential value of the electronic signature within the limits permitted by the applicable law.

By signing this Agreement (framework agreement version 1.0-UPW, Upwork Edition), the Introducer accepts version 1.0 of the Commercial Terms and Commissions (Annex 2).

Signed electronically on [DATE].

| For FLOWPOINT                   | For the Introducer   |
|---------------------------------|----------------------|
| Name: Maël Heusschen            | Name: [NAME]         |
| Position: Founder / Sole Trader | Position: [POSITION] |
| Email: support@flowpoint.pro    | Email: [EMAIL]       |
| Signature:                      | Signature:           |

## Annex 1 — Practical information

Personal referral link / seller\_id / partner code: [IDENTIFIER]

Authorised subscriptions: [SUBSCRIPTIONS]

Authorised countries: [COUNTRIES]

Authorised sectors: [SECTORS]

Registration method: [CRM/FORM/LIST/LINK]

Accepted list format: [EXCEL/CSV/FORM/OTHER]

FLOWPOINT's invoicing address: Heusschen, Maël (FlowPoint), Cité de Husquet 10, 4820 Dison, Belgium — VAT BE1038.273.845

Email address for prospect registration: support@flowpoint.pro

Email address for invoicing: support@flowpoint.pro

Upwork contract reference (Article 9bis): [UPWORK CONTRACT ID]

Email address for commercial questions: support@flowpoint.pro

## Annex 2 — Commercial Terms and Commissions

Version: 1.0

Effective date: 14 September 2026

Reference framework agreement: Independent Business Introducer Framework Agreement — Upwork Edition, version 1.0-UPW

These Commercial Terms form an integral part of the Agreement. They set out the Commission rules applicable as from their effective date. They may change through successive versions, for the future only, under the conditions of Article 7 of the Agreement.

### 1. Eligible offers

Offers currently marketed by FLOWPOINT and giving entitlement to a Commission, subject to the subscriptions authorised for the Introducer in Annex 1:

| Offer    | Public price | Billing |
|----------|--------------|---------|
| Standard | €29 / month  | Monthly |
| Pro      | €79 / month  | Monthly |
| Ultra    | €149 / month | Monthly |

The prices are given for information purposes, as published by FLOWPOINT on the effective date of this version. The prices applicable to customers are those set in accordance with Article 10. The Commission is calculated on the amount excluding taxes actually collected, in accordance with point 3.

As at the effective date of this version, FLOWPOINT markets neither annual billing nor an Enterprise offer. An offer, a billing method or a category of products or services not mentioned above gives entitlement to a Commission only if a subsequent version of the Commercial Terms so provides.

### 2. Rate and character of the Commission

Commission rate: 35%

Character: One-off, non-recurring Commission, paid only once per new customer

### 3. Calculation basis

The Commission is equal to 35% of the amount excluding taxes of the first eligible subscription payment actually paid by the customer and definitively collected by FLOWPOINT after the trial period.

For a monthly subscription, the Commission corresponds to 35% of the first monthly payment excluding taxes actually collected by FLOWPOINT. Where a discount is granted, the Commission is calculated on the amount excluding taxes actually paid after that discount.

### 4. Exclusions

The Commission is payable only once per new customer. It does not apply to:

- renewals;
- the second month of subscription or any subsequent month;

- add-ons;
- artificial intelligence tokens or credits;
- installation, migration or consultancy fees;
- taxes, discounts, credit notes or refunded amounts;
- fraudulent or unpaid transactions;
- purchases made personally by the Introducer;
- duplicate or artificially created accounts.

**5. Version history**

| Version | Effective date    | Changes                                                                                                                                                    |
|---------|-------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1.0     | 14 September 2026 | Initial version: one-off, non-recurring Commission of 35% on the first eligible subscription payment; Standard, Pro and Ultra offers with monthly billing. |